

# HOUSE . . . . . No. 3169

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## The Commonwealth of Massachusetts

PRESENTED BY:

*Jay D. Livingstone*

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to encourage donations to local nonprofits.

PETITION OF:

| NAME:                     | DISTRICT/ADDRESS:  | DATE ADDED:      |
|---------------------------|--------------------|------------------|
| <i>Jay D. Livingstone</i> | <i>8th Suffolk</i> | <i>1/16/2025</i> |

# HOUSE . . . . . No. 3169

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By Representative Livingstone of Boston, a petition (accompanied by bill, House, No. 3169) of Jay D. Livingstone for legislation to encourage donations to local nonprofits. Revenue.

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## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act to encourage donations to local nonprofits.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

- 1           “Section 5A of Chapter 62 is hereby amended by adding the following subsection:
- 2           (e) Notwithstanding any other provision in law, the commissioner shall not consider
- 3 charitable donations or volunteer services made to charitable organizations that are based in
- 4 Massachusetts or a person’s service on a board of directors where they serve as a non-
- 5 compensated member for a charitable organization based in Massachusetts for the purpose of
- 6 determining residency or domicile for tax purposes.